Salient Features of the Constitution

1. A detailed, adaptable Constitution

- India's Constitution is exceptionally comprehensive: basic principles **and detailed administrative provisions**. Commonly described as the **lengthiest written national Constitution**.
- **Original:** Preamble, **395 Articles, 22 Parts, 8 Schedules**. Subsequently **25 operative Parts and 12 Schedules**; inserted/omitted Articles make a single “current Article count” dependent on counting method. The chapter's “about 470” is an approximate textbook figure, not the highest Article number.
- Why detailed? **Country's size/diversity; Government of India Act, 1935 legacy; one Constitution for Union/States; legally trained framers**. Matters left to conventions or ordinary law elsewhere were often expressly included.
- Key changes: **7th, 42nd, 44th, 73rd, 74th, 97th and 101st Amendments**. **42nd (1976): Mini-Constitution**, owing to its extensive changes.
- **Kesavananda Bharati, 24 April 1973:** Parliament can amend under Article 368, but cannot damage/destroy the **basic structure**.
- J&K formerly had its own Constitution. **2019:** C.O.272 applied the Indian Constitution in full and superseded the 1954 application order; **C.O.273** made Article 370's former special regime inoperative. The **2019 Reorganisation Act** created J&K and Ladakh Union territories. Do not attribute every change to C.O.272 alone. Supreme Court, Article 370 judgment

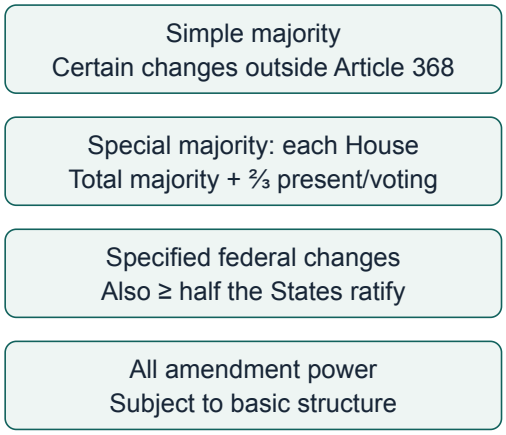
2. Borrowed features, adapted to India

- **Structural/administrative:** major influence of Government of India Act, 1935—federal arrangements, Governors, courts, commissions and emergency machinery.
- **Philosophical:** Fundamental Rights—American influence; Directive Principles—Irish influence.
- **Political:** parliamentary/cabinet government and executive–legislature relations—British influence.
- Other influences include Canada, Australia, Weimar Germany, USSR, France, South Africa and Japan. **Borrowing involved modification**, not wholesale copying.
- Ambedkar's defence: constitutional ideas are shared; originality lies in adapting them to national needs and correcting shortcomings. The chapter's estimates of “about 250” inherited provisions or “more than half” resembling 1935 are historical assessments, not exact legal classifications.

3. Blend of rigidity and flexibility

- **Outside Article 368:** some constitutional changes by ordinary/simple-majority legislation, e.g. State reorganisation under Articles 3–4.
- **Article 368 special majority:** in **each House**, majority of **total membership + at least two-thirds present and voting**.
- **Specified federal provisions:** that special majority **plus ratification by legislatures of at least half the States**.

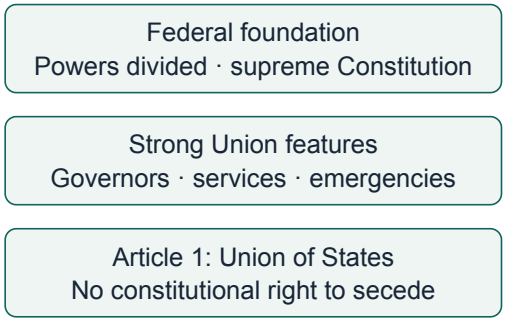
- Both Houses must pass an Article 368 amendment; ordinary lawmaking and constituent power are different. Amendment power remains subject to **basic structure**.



The required majority depends on what is changed.

4. Federal system with a unitary bias

- **Federal features:** Union and State governments; constitutional distribution of powers; written/supreme Constitution; protected amendment procedure; independent judiciary; bicameral Parliament.
- **Centralising features:** strong Centre, one Constitution, single citizenship, integrated courts, centrally appointed Governors, All-India Services, emergency powers and some flexible provisions.
- **Article 1: Union of States.** India was not created by an agreement among sovereign States; **States have no right to secede**.
- Scholarly descriptions: **K.C. Wheare—quasi-federal; Morris Jones—bargaining federalism; Granville Austin—cooperative federalism; Ivor Jennings—federation with a centralising tendency**.
- These labels describe different aspects; they do not displace constitutional federalism or permit unlimited central action.

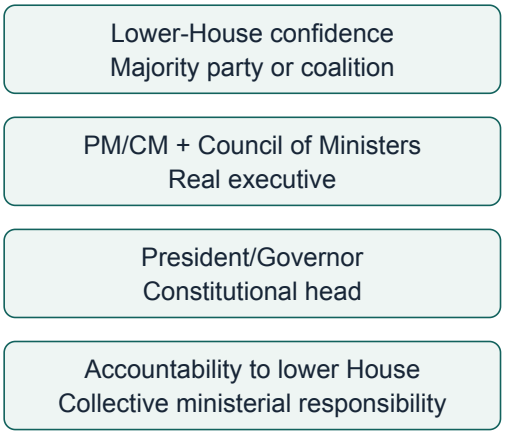


Federal institutions coexist with centralising provisions.

5. Parliamentary government

- **Westminster/cabinet/responsible government:** executive and legislature cooperate; adopted at **Union and State levels**.
- **Nominal executive:** President/Governor. **Real executive:** Council of Ministers headed by PM/CM.

- Government normally formed by party/coalition commanding lower-House confidence; **collective responsibility to Lok Sabha/Legislative Assembly**.
- Ministers are usually legislators; a non-member may serve for **six months**, then must secure membership.
- PM/CM leadership; lower House can be dissolved. This close relationship differs from the presidential system's separately constituted executive.
- **India versus UK:** Indian Parliament is bound by a supreme Constitution and judicial review; India is a republic with an elected President, unlike the UK's hereditary monarch.
- Strong PM leadership explains the scholarly expression **Prime Ministerial Government**, but legal accountability continues.



Cabinet government links legislative confidence, executive action and accountability.

---

6. Parliament, judicial review and constitutional supremacy

- Chapter describes a synthesis of British parliamentary sovereignty and American judicial supremacy. For India, the precise governing principle is **constitutional supremacy**.
- Courts review legislative/executive action; Parliament legislates and amends within constitutional limits. Neither has unrestricted authority.
- **Article 21 wording:** procedure established by law; Japanese influence in the chapter's source table.
- **Correction:** do not infer that any enacted procedure is sufficient. **Maneka Gandhi (1978)** requires fairness, reasonableness and non-arbitrariness; the chapter's simple US “due process” versus Indian “procedure” contrast is incomplete. Supreme Court's account of Maneka Gandhi

---

7. Integrated and independent judiciary

- **Supreme Court → High Courts → district/subordinate courts**. One integrated system administers Union and State law; the US has separate federal/State court systems, although their jurisdictions can overlap.
- Supreme Court: federal dispute adjudication, highest appellate court, Fundamental Rights protection and constitutional guardianship.
- Independence safeguards: **security of tenure, protected service conditions, charged expenditure, restricted legislative discussion of judicial conduct, contempt powers and separation from executive**.

- **Qualifications:** judicial conduct can be discussed for a removal motion; retirement-practice restrictions differ between Supreme Court and High Court judges. Do not treat every judge as subject to an identical blanket ban.
- Supreme Court expenses charged on **Consolidated Fund of India**; High Court expenditure on the relevant **State's Fund**.

---

8. Fundamental Rights: Part III

- **Equality, 14–18; Freedom, 19–22 (including 21A); Against exploitation, 23–24; Religion, 25–28; Cultural/educational rights, 29–30; Constitutional remedies, 32.**
- Promote political democracy; restrain arbitrary State power; **justiciable**. Some rights protect **all persons**, others specifically citizens—do not say all rights are citizen-only.
- **Article 32:** Supreme Court remedies for Fundamental Rights; **226:** High Court writs for rights **and other legal purposes**.
- Five writs: **habeas corpus**—produce detained person/test detention; **mandamus**—perform public duty; **prohibition**—stop jurisdictional excess; **certiorari**—quash defective decision; **quo warranto**—test authority to hold public office.
- Rights are not uniformly absolute; restrictions depend on each provision. Constitutional amendments affecting rights remain subject to basic structure.
- Originally seven categories: **44th Amendment (1978)** removed property from Fundamental Rights; **Article 300A, Part XII** now protects it as a constitutional legal right.
- **Emergency distinction:** Article **358** relaxes Article 19 constraints only during an emergency based on **war/external aggression**, with constitutional conditions; not armed rebellion. Under **359**, a presidential order may suspend court enforcement of specified rights, **excluding Articles 20 and 21**. No blanket automatic suspension of every right.



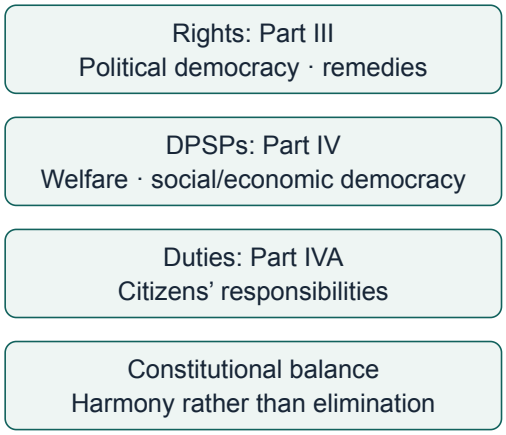
Rights, remedies and emergency effects must be distinguished.

---

9. Directive Principles and Fundamental Duties

- **DPSPs: Part IV, 36–51**; Ambedkar called them a novel feature. Promote social/economic democracy and welfare; common textbook groups: **socialistic, Gandhian, liberal-intellectual**.
- **Article 37:** not directly court-enforceable, but fundamental in governance; State has a duty to apply them in lawmaking. Political accountability/public opinion support implementation.

- **Minerva Mills (1980):** harmony/balance between Fundamental Rights and DPSPs is part of basic structure; avoid claiming one can simply eliminate the other.
- **Duties: Part IVA, Article 51A**. **42nd Amendment (1976), Swaran Singh Committee:** ten duties; **86th (2002): eleventh**, parental/guardian responsibility for educational opportunities to children **6–14**.
- Recall all eleven: respect Constitution/Flag/Anthem; follow freedom-struggle ideals; protect sovereignty/unity/integrity; defend country; promote harmony and renounce practices derogatory to women's dignity; preserve composite culture; protect environment and show compassion for living creatures; scientific temper/humanism/inquiry/reform; safeguard public property and reject violence; strive for excellence; provide children's educational opportunity.
- Duties remind citizens of obligations alongside rights. Generally **not directly enforceable**, but legislation can give particular obligations legal effect.



Rights, policy goals and duties perform complementary roles.

10. Secular State

- No official State religion; freedom of belief, faith and worship. **Secular** inserted in Preamble by **42nd Amendment (1976)**; secular principles existed earlier.
- **14:** equal protection; **15–16:** prohibit specified discrimination, including religion, with constitutional qualifications.
- **25:** conscience/profession/practice/propagation; **26:** religious denomination affairs; subject to their constitutional limits, including public order, morality and health where applicable.
- **27:** no compulsory taxation specifically appropriated for promoting/maintaining a particular religion. **28:** religious instruction/worship rules in educational institutions; the ban on instruction concerns institutions **wholly maintained by State funds**, with an endowment/trust exception.
- **29:** language/script/culture protection for qualifying sections of citizens; **30:** minorities' educational institutions; **44:** DPSP for a Uniform Civil Code.
- Indian secularism commonly emphasises equal respect/protection and permits principled regulation/social reform. The chapter contrasts this with strict church–State separation; Western systems themselves vary.
- No religion-based separate electorates; **SC/ST reserved legislative seats** coexist with joint electorates and serve representation, not religious separation.

11. Universal adult franchise and single citizenship

- **Article 326:** Lok Sabha/State Assembly elections based on adult suffrage; citizens **18+**, subject to residence and lawful disqualifications. No literacy, wealth or religious qualification.
- **61st Amendment Act, 1988**, effective **1989:** voting age **21** → **18**.
- Broadens democracy, political equality, dignity and opportunities for disadvantaged/minority groups; introduced despite poverty, illiteracy and social inequality.
- **Single Indian citizenship**, despite Union/State government levels; no separate constitutional State citizenship as in the US.
- Promotes integration and equal citizenship; this does not prohibit every constitutionally authorised residence qualification or protective regional provision. Communal, caste, linguistic and class divisions remain practical challenges to unity.
- **Women's suffrage comparison:** USA **1920**; UK equal franchise **1928**; Switzerland federal suffrage **1971**. The chapter's USSR **1936** date refers to its constitutional universal-suffrage framework, not the first enfranchisement of Russian women. UK Parliament
- **Correct France/Italy:** France recognised the right in **1944**, women first voted in **1945**; Italy recognised it in **1945**, women voted in **1946**, rather than first receiving it in 1948. French government, Italian Senate

12. Independent constitutional bodies

- **ECI, Article 324:** Parliament, State legislatures, President and Vice-President elections. **Local-body elections belong to State Election Commissions**, not ECI.
- **CAG, 148–151:** audit/public-finance accountability; examines legality/propriety of expenditure under applicable law—guardian of the public purse.
- **UPSC/State PSCs, 315–323:** recruitment examinations and service/disciplinary advice; **320** lists functions. A **Joint State PSC** is constitutionally possible.
- Independence protected through appointment/removal arrangements, tenure, service conditions and charged expenditure; details differ between bodies. State PSC expenditure is charged on the relevant State Fund.
- **Three All-India Services:** IAS, IPS and **Indian Forest Service (IFoS)**. IAS/IPS succeeded colonial services; **Article 312** recognises them. Forest-service legislation enabled its creation in **1963**; service constituted in **1966**.

13. Emergency provisions: Part XVIII

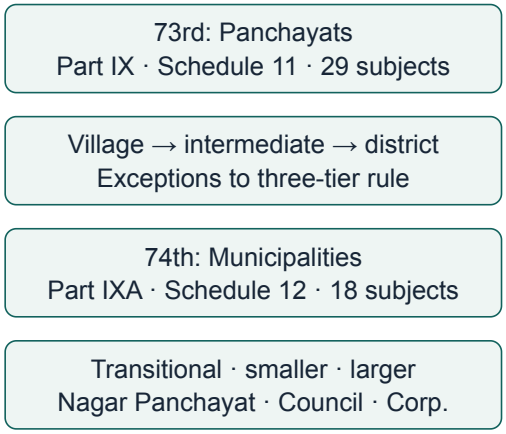
- **352—National Emergency:** war, external aggression or armed rebellion. **44th Amendment:** replaced "internal disturbance" with **armed rebellion**.
- **356—President's Rule:** failure of constitutional machinery in a State. **365:** non-compliance with Union directions can support such a conclusion; it is not a separate fourth emergency.
- **360—Financial Emergency:** threat to financial stability/credit of India **or any part of its territory**.
- Purpose: protect sovereignty, unity, integrity, security and constitutional government; emergency provisions permit stronger Union control without a new amendment.
- **Qualification:** effects differ across the three types. They do not automatically erase State institutions or give unlimited central power; constitutional safeguards and judicial review remain.



Three emergency provisions have different conditions and effects.

14. Local government: the third tier

- **73rd Amendment (1992), effective 1993:** Panchayats; **Part IX, 243–243O; Eleventh Schedule, 29 subjects**.
- Rural structure: **village → intermediate → district**. Intermediate tier may be omitted in States with population **not exceeding 20 lakh**; special constitutional exclusions also exist.
- **74th Amendment (1992), effective 1993:** Municipalities; **Part IXA, 243P–243ZG; Twelfth Schedule, 18 subjects**.
- **Nagar Panchayat:** transitional area; **Municipal Council:** smaller urban area; **Municipal Corporation:** larger urban area, subject to constitutional exceptions.
- Constitutional recognition is distinct from automatic transfer of every Schedule function; actual devolution depends on legislation.
- **Correction:** constitutionally recognised local government is not unique to India; avoid the chapter's absolute "no other Constitution" claim.



Constitutional recognition supports local democracy; devolution still needs law.

15. Cooperative societies

- **97th Amendment Act, 2011**, effective **2012:** cooperative societies added to **19(1)(c)**; **43B** directs promotion; **Part IXB, 243ZH–243ZT** addresses organisation/governance.

- Aims: voluntary formation, democratic control, autonomy, professional management and economic soundness.
- **Union of India v. Rajendra N. Shah (2021):** Part IXB invalid for cooperatives operating only within a State, because necessary State ratification was absent. It survives for **multi-State cooperatives**; the Supreme Court subsequently clarified applicability to cooperatives in **Union territories**.
- **19(1)(c) and 43B survive**; do not say the entire 97th Amendment was struck down. Supreme Court's clarification

---

16. Criticisms: claims and balanced responses

- **Borrowed/patchwork:** critics alleged no originality. Response—ideas adapted to Indian conditions; borrowing is compatible with deliberate design.
- **Carbon copy of 1935 Act: N. Srinivasan, Ivor Jennings and P.R. Deshmukh** stressed continuity. Response—administrative inheritance alongside new popular sovereignty, rights, republic and adult suffrage; Ambedkar defended borrowing administrative detail.
- **Un-Indian/anti-Indian: K. Hanumanthaiya** used an Indian-instruments/English-band analogy; **Lokanath Misra and Lakshminarayan Sahu** criticised foreign influence. These were opinions, not demonstrated constitutional facts.
- **Un-Gandhian:** critics wanted a polity built around village/district Panchayats; **Hanumanthaiya and T. Prakasam** criticised the approach. Response—Gandhian DPSPs and later local-government amendments provide elements of decentralisation; acknowledge the original centralised design.
- **Elephantine size:** Jennings questioned length/selection; **H.V. Kamath** compared it to the Assembly's elephant symbol. Response—diversity, administrative detail and institutional safeguards explain much of the length.
- **Lawyer's paradise: Jennings, H.K. Maheshwari and Deshmukh** criticised technical language and litigation potential. Response—precision/justiciable rights need legal detail, though accessibility remains important.

---

17. Parts: complete compact map

- **I, 1–4:** Union/territory. **II, 5–11:** citizenship. **III, 12–35:** Fundamental Rights. **IV, 36–51:** DPSPs. **IVA, 51A:** duties.
- **V, 52–151—Union:** executive 52–78; Parliament 79–122; President's legislative power 123; judiciary 124–147; CAG 148–151.
- **VI, 152–237—States:** general 152; executive 153–167; legislature 168–212; Governor's legislative power 213; High Courts 214–232; subordinate courts 233–237.
- **VII/238:** Part-B States—omitted by **7th Amendment, 1956**. **VIII, 239–242:** Union territories; 242 omitted.
- **IX, 243–243O:** Panchayats. **IXA, 243P–243ZG:** Municipalities. **IXB, 243ZH–243ZT:** cooperatives, with judicially limited application.
- **X, 244–244A:** Scheduled/Tribal Areas. **XI, 245–263:** Union–State relations—legislative 245–255; administrative 256–263.
- **XII, 264–300A:** finance 264–291; borrowing 292–293; property/contracts/rights/liabilities/obligations/suits 294–300; property right 300A.
- **XIII, 301–307:** trade/commerce/intercourse. **XIV, 308–323:** services 308–314 (314 omitted); PSCs 315–323.

- **XIVA, 323A–323B:** tribunals. **XV, 324–329:** elections; 329A omitted—correct the table's unqualified 329A endpoint.
- **XVI, 330–342A:** special provisions for certain classes, including inserted **330A, 332A and 334A** on women's reservation under the **106th Amendment (2023)**. Implementation is subject to the census/delimitation conditions in 334A; insertion does not itself mean reserved-seat elections have begun.
- **XVII, 343–351:** language—Union 343–344; regional 345–347; courts/legal texts 348–349; directives 350–351.
- **XVIII, 352–360:** emergencies. **XIX, 361–367:** miscellaneous. **XX, 368:** amendment. **XXI, 369–392:** temporary/transitional/special provisions. **XXII, 393–395:** short title, commencement, authoritative Hindi text, repeals.
- Added Parts: **IVA and XIVA—42nd; IXA—74th; IXB—97th**. Part IX's present Panchayat provisions derive from the **73rd**; original Part IX concerned territories and was repealed in 1956. Official Constitution: contents and amendment footnotes

---

18. Schedules 1–6

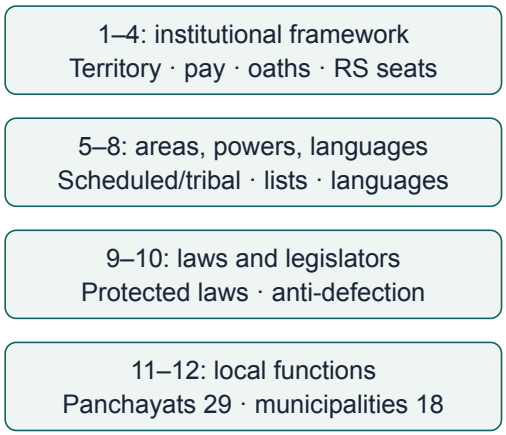
- **1—territory:** States/UTs and their extent; **Articles 1, 4**.
- **2—emoluments/allowances/privileges:** President, Governors, parliamentary/State-legislative presiding officers and deputies, Supreme Court/High Court judges, CAG. Related **59, 65, 75, 97, 125, 148, 158, 164, 186, 221**. Includes the listed offices' constitutional financial provisions, not every official's salary.
- **3—oaths/affirmations:** Union/State ministers; parliamentary/State-legislative candidates and members; Supreme Court/High Court judges; CAG. **75, 84, 99, 124, 148, 164, 173, 188, 219**. President/Governor oaths are in Articles **60/159**, not this Schedule.
- **4—Rajya Sabha seat allocation:** States/UTs; **4, 80**.
- **5—Scheduled Areas/Scheduled Tribes administration: 244**; distinguish from Sixth-Schedule areas.
- **6—tribal-area administration: Assam, Meghalaya, Tripura, Mizoram**; **244, 275**. Recall **A–M–T–M**, not all North-East States.

---

19. Schedules 7–12

- **7—Union, State, Concurrent Lists: 246**. Original **97/66/47** entries; chapter gives surviving totals **98/59/52**, counting inserted/omitted entries. Highest serial numbers remain **97/66/47**; serial number ≠ surviving-entry count. GST has special legislative allocation under **246A**.
- **8—22 scheduled languages: 344, 351**; originally 14. These are not “22 national languages”.
- Languages: **Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu**.
- Additions: **21st (1967)—Sindhi; 71st (1992)—Konkani, Manipuri, Nepali; 92nd (2003)—Bodo, Dogri, Maithili, Santhali; 96th (2011)—Oriya renamed Odia**.
- **9—protected Acts/Regulations, Article 31B:** added by **1st Amendment, 1951**; originally **13**, chapter lists **282** surviving entries, last number 284 with omissions and 257A insertion. Land reform prominent, but coverage not limited to it.
- **I.R. Coelho (2007):** post-**24 April 1973** Ninth-Schedule insertions can be tested for damage to basic structure; inclusion is not blanket immunity from judicial review. Supreme Court discussion

- **10—anti-defection: 102, 191**; **52nd Amendment, 1985**; disqualification of parliamentary/State-legislative members.
- **11—Panchayat functions, 29 subjects: 243G**, 73rd Amendment. **12—municipal functions, 18 subjects: 243W**, 74th Amendment.



Recall all twelve Schedules in three groups plus local government.

---

20. Borrowing map: complete reference

- **Government of India Act, 1935:** federal scheme, Governor, judiciary, PSCs, emergency/administrative provisions, antecedent for advisory jurisdiction.
- **UK:** Parliament/cabinet, rule of law, legislative procedure, single citizenship, writs, privileges, bicameralism.
- **USA:** Fundamental Rights, independent judiciary, judicial review, presidential impeachment, judicial removal arrangements, Vice-President.
- **Ireland:** DPSPs, Rajya Sabha nomination, presidential-election method. Adaptations differ from the source country's actual institutions.
- **Canada:** strong Centre, central residuary powers, centrally appointed State Governors.
- **Australia:** Concurrent List, trade/commerce freedom, joint sitting.
- **Weimar Germany:** emergency-related suspension of rights.
- **USSR:** Fundamental Duties; social/economic/political justice ideals. Historical USSR influence is not attribution to today's Russian Constitution.
- **France:** republic; liberty, equality, fraternity.
- **South Africa:** amendment procedure; Rajya Sabha election method.
- **Japan:** procedure established by law.

---

21. One-minute recall and mains structure

- **Rights—political democracy; DPSPs—social/economic democracy; duties—citizen responsibility.**
- **73rd = rural = IX = 11 = 29. 74th = urban = IXA = 12 = 18. 97th = cooperatives = IXB, with judicial limits.**
- **352 national; 356 State; 360 financial. 365 is linked to State failure, not an independent emergency.**

- **Parliamentary executive depends on legislative confidence; constitutional supremacy limits Parliament and courts.**
- **Mains:** identify feature → cite Article/amendment → explain purpose → discuss Indian adaptation → qualify practical/legal limits. For criticism, separate administrative continuity from democratic transformation.
- **Common traps:** State citizenship; all rights citizen-only; absolute Ninth-Schedule immunity; automatic suspension of all rights; every Panchayat compulsory at three levels; whole 97th Amendment invalid; ECI conducting municipal elections.